

District-Bogura.

Md. Israfil Hossen

.....Accused-petitioner.

-Versus-

The State

.....Opposite-party.

Mr. Md. Golam Akter Zakir, Advocate

.....For the Accused-petitioner.

Mr. Md. Saiefuddin Khaled, D.A.G with

Mr. Md. Asaduzzaman, A.A.G with

Mrs. Afifa Begum Swapna, A.A.G and

Mr. Sarwar Akhtar Masud, A.A.G,

.....For the State opposite-party.

Present:

Mr. Justice Md. Nazrul Islam Talukder.

And

Mr. Justice Kazi Ebadoth Hossain

16.01.2024.

Heard the learned Advocate for the accused-petitioner and the learned Deputy Attorney-General for the State opposite-party and perused the application along with prosecution materials annexed therewith.

Records need not be called for.

Let a Rule be issued calling upon the opposite-party to show cause as to why the accused-petitioner should not be enlarged on bail in Bogura Police Station Case No.98 dated 30.10.2023 corresponding to G.R No.1058 of 2023 under Sections 143 / 147 / 323 / 325 / 307 / 114 / 34 of the Penal Code, 1860 read with Sections 3/5/6 of the Explosive Substances Act, 1908 now pending in the Court of learned Chief Judicial Magistrate, Bogura and/or pass such other or further order or orders as to this Court may seem fit and proper.

The Rule is made returnable within 4(four) weeks from date.

Subject to disposal of the Rule, let the accused-petitioner namely Md. Israfil Hossen son of late Abul Hossen alias Monto Akondo enlarged on ad-interim bail in the above mentioned case for a period of 6(six) months from date, subject to furnishing adequate bail bond to the satisfaction of the learned Chief Judicial Magistrate, Bogura.

The accused-petitioner is also directed to submit an undertaking to the effect that he will never participate in any subversive activity such as vandalizing and setting fire to any property belonging to the State.

The learned Judge of the Court below shall be at liberty to cancel the bail of the accused-petitioner if he misuses the privilege of bail in any manner.

However, the accused-petitioner shall put in 2(two) sets of requisites within 7 (seven) days, for service of notice of the Rule upon the opposite-party in normal course as well as by registered post with A/D as per HCD Rules.

Office shall not issue any certified copy of this order to the petitioner unless requisites are put in.